

**BEFORE THE OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF NORTH CAROLINA**

COUNTY OF PINE HOLLOW

In the Matter of:

MAYA OKAFOR, a minor, by and through the
parent, GRACE OKAFOR,

Petitioner,

v.

PINE HOLLOW COUNTY BOARD OF
EDUCATION,

Respondent.

Case No. _____

**DUE PROCESS COMPLAINT
NOTICE**

20 U.S.C. § 1415(b)(7)

34 C.F.R. § 300.508

Date: June 1, 2026

I. INTRODUCTION

1. Petitioner Maya Okafor (“Student”) is a student who is eligible for special education and related services under the category of Speech or Language Impairment (initially found eligible on February 14, 2020), and who attends Cedar Ridge Middle School in the Pine Hollow County Schools, for which the Pine Hollow County Board of Education is the responsible local educational agency and the respondent here (“District”). This due process complaint is brought on Student’s behalf by the parent, Grace Okafor (“Parent”). Petitioner and the Parent are represented by Renée Castillo of Castillo Education Law PLLC.

2. The District has denied Student a free appropriate public education (“FAPE”) by failing to implement the services the operative individualized education program (“IEP”) requires; by failing to evaluate Student appropriately; and by refusing to fund an independent educational evaluation at public expense without filing its own due process complaint. Petitioner requests an impartial due process hearing on the problems stated in this complaint.

II. CONTACT AND RESIDENCE INFORMATION

34 C.F.R. § 300.508(b)(1)–(3).

3. Student was born on April 19, 2013, resides with the Parent at 72 Laurel Court, Pine Hollow, NC 27999, and is enrolled at Cedar Ridge Middle School. The Parent may be reached at grace.okafor@example.com and (555) 010-2088.

III. STATEMENT OF FACTS

4. On May 6, 2025, the District's speech-language pathologist administered the CELF-5 to Student; on that administration Student obtained a Core Language Score of 71 (2nd percentile), an Expressive Language Index of 68 and a Receptive Language Index of 79.

5. On August 21, 2025, the IEP team met for Student's annual review; the IEP provides speech-language therapy at 60 minutes per week, individual, from August 21, 2025 to August 20, 2026; the team declined the Parent's request that the District assess written expression; and the Parent signed, writing that she still wanted written expression tested.

6. In the week of September 22, 2025, individual speech-language sessions ended when the provider's caseload was reassigned; the log records 30 minutes in a group of 3 for that week.

7. In the week of October 27, 2025, the log records no speech-language service for the week (provider absent; no make-up scheduled).

8. On November 10, 2025, the Parent requested in writing an independent educational evaluation in speech-language and written expression at public expense, stating disagreement with the evaluation of May 6, 2025.

9. In the week of November 24, 2025, the log records no speech-language service for the week (holiday week).

10. On December 4, 2025, the District issued a prior written notice declining to fund an independent educational evaluation, stating that it considers the May 6, 2025 evaluation appropriate and will assess written expression in the spring 2026 reevaluation window.

11. On January 14, 2026, the Parent wrote to the District that Student reported her speech sessions were with two other students and half as long, and asked for the service log and when individual sessions would resume.
12. In the week of January 19, 2026, the log records no speech-language service for the week (provider absent; no make-up scheduled).
13. On January 21, 2026, the District sent the speech-language service log and wrote that the provider's caseload was reassigned in September and individual sessions have not been available since; it expects to post a second SLP position this spring.
14. On January 30, 2026, the service log period ended; its summary states 22 weeks, 4 at 60 minutes individual, 15 at 30 minutes group, 3 with no service, and 690 total minutes delivered against 1,320 required by the IEP for 22 weeks.
15. On February 9, 2026, the Parent wrote that the log shows 690 minutes delivered against 1,320 required, asked the District to make up the missed minutes and restore individual sessions now, and noted no response about the independent evaluation beyond the December 4 notice.

IV. STATEMENT OF THE PROBLEMS

A. Failure to implement the services the IEP requires

34 C.F.R. § 300.323.

16. The IEP requires speech-language therapy of 60 minutes per week, individual. From the week of September 22, 2025 the District delivered 30 minutes in a group of 3 instead, and its own service log gives the reason: "provider caseload reassigned; individual slot unavailable". Over the log period it delivered 690 of the 1,320 minutes the IEP requires. The IEP was never amended to record the change, and no make-up was scheduled for the weeks the provider was absent (paragraphs 5, 6, 13 and 14).

B. Failure to evaluate Student appropriately

34 C.F.R. §§ 300.301–300.311.

17. The only speech-language evaluation of Student is the District’s of May 6, 2025, which did not assess written expression. The Parent asked at the August 21, 2025 IEP meeting that written expression be assessed, and the team answered by adding 45 minutes per week of specially designed instruction in it while declining to evaluate it — instruction in a skill the District has never measured. The Parent signed the IEP and wrote: “I agree with the services. I still want written expression tested.” (paragraphs 4 and 5).

C. Refusal to fund an independent educational evaluation

34 C.F.R. § 300.502(b).

18. The Parent disagreed in writing with the May 6, 2025 evaluation and asked for an independent educational evaluation at public expense. The District declined by prior written notice, stating that it considers its own evaluation appropriate and will assess written expression itself in the spring 2026 reevaluation window, and it did not file a due process complaint to defend that evaluation (paragraphs 4, 8 and 10).

V. PROPOSED RESOLUTION

34 C.F.R. § 300.508(b)(6).

19. The Parent proposes the following resolution:

- (a) compensatory speech-language therapy, delivered individually, for the shortfall the District’s service log records between the 690 minutes delivered and the 1,320 minutes the IEP requires for those 22 weeks;
- (b) an independent educational evaluation in speech-language and written expression at public expense; and
- (c) restoration of individual speech-language therapy at 60 minutes per week as the IEP requires.

20. The Parent reserves the right to seek reasonable attorneys' fees and costs under 20 U.S.C. § 1415(i)(3)(B).

VI. ADDITIONAL INFORMATION REQUIRED IN NORTH CAROLINA

21. Basis of the complaint, in the categories Form H-06E lists: the evaluation of Student, and the denial of a free appropriate public education.

Dated: _____

Respectfully submitted,

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CERTIFICATE OF SERVICE

Counsel for Petitioner and the Parent certifies that on the date written below a true and complete copy of this Due Process Complaint Notice was served on the Superintendent of the Pine Hollow County Board of Education; and the North Carolina Department of Public Instruction, 6356 Mail Service Center, Raleigh, NC 27699-6356, by the method indicated below.

Method of service: ☐ U.S. mail ☐ Hand delivery ☐ Other: _____

Name and address of each person served:

Dated: _____

Renée Castillo

Attorney for Petitioner and the Parent